

"REGISTER OF WAGE DETERMINATIONS UNDER THE SERVICE CONTRACT ACT By direction of the Secretary of Labor		U.S. DEPARTMENT OF LABOR EMPLOYMENT STANDARDS ADMINISTRATION WAGE AND HOUR DIVISION WASHINGTON D.C. 20210
Daniel W. Simms Director	Division of Wage Determinations	Wage Determination No.: 2015-6025 Revision No.: 3 Date Of Last Revision: 12/03/2025

State: North Dakota

Area: North Dakota Counties of McHenry, Renville, Ward

****Fringe Benefits Required Follow the Occupational Listing****

OCCUPATION CODE - TITLE	FOOTNOTE	RATE
01000 - Administrative Support And Clerical Occupations		
01011 - Accounting Clerk I		18.54
01012 - Accounting Clerk II		20.81
01013 - Accounting Clerk III		23.28
01020 - Administrative Assistant		30.72
01035 - Court Reporter		21.99
01041 - Customer Service Representative I		16.53
01042 - Customer Service Representative II		18.04
01043 - Customer Service Representative III		20.26
01051 - Data Entry Operator I		16.05
01052 - Data Entry Operator II		17.51
01060 - Dispatcher, Motor Vehicle		30.55
01070 - Document Preparation Clerk		17.51
01090 - Duplicating Machine Operator		17.51
01111 - General Clerk I		19.17
01112 - General Clerk II		20.92
01113 - General Clerk III		23.48
01120 - Housing Referral Assistant		24.52
01141 - Messenger Courier		14.28
01191 - Order Clerk I		16.05
01192 - Order Clerk II		17.51
01261 - Personnel Assistant (Employment) I		19.66
01262 - Personnel Assistant (Employment) II		21.99
01263 - Personnel Assistant (Employment) III		24.52
01270 - Production Control Clerk		32.79
01290 - Rental Clerk		18.92
01300 - Scheduler, Maintenance		19.66
01311 - Secretary I		19.66
01312 - Secretary II		21.99
01313 - Secretary III		24.52
01320 - Service Order Dispatcher		27.31
01410 - Supply Technician		30.72
01420 - Survey Worker		21.99
01460 - Switchboard Operator/Receptionist		17.88
01531 - Travel Clerk I		16.32
01532 - Travel Clerk II		17.37
01533 - Travel Clerk III		18.41
01611 - Word Processor I		17.51
01612 - Word Processor II		19.66
01613 - Word Processor III		21.99
05000 - Automotive Service Occupations		
05005 - Automobile Body Repairer, Fiberglass		29.51
05010 - Automotive Electrician		24.15

05040 - Automotive Glass Installer	22.48
05070 - Automotive Worker	22.48
05110 - Mobile Equipment Servicer	19.23
05130 - Motor Equipment Metal Mechanic	25.56
05160 - Motor Equipment Metal Worker	22.48
05190 - Motor Vehicle Mechanic	25.56
05220 - Motor Vehicle Mechanic Helper	17.55
05250 - Motor Vehicle Upholstery Worker	20.86
05280 - Motor Vehicle Wrecker	22.48
05310 - Painter, Automotive	24.15
05340 - Radiator Repair Specialist	22.48
05370 - Tire Repairer	19.88
05400 - Transmission Repair Specialist	25.56
07000 - Food Preparation And Service Occupations	
07010 - Baker	19.33
07041 - Cook I	18.73
07042 - Cook II	21.90
07070 - Dishwasher	14.39
07130 - Food Service Worker	17.14
07210 - Meat Cutter	18.81
07260 - Waiter/Waitress	14.11
09000 - Furniture Maintenance And Repair Occupations	
09010 - Electrostatic Spray Painter	29.40
09040 - Furniture Handler	18.01
09080 - Furniture Refinisher	29.40
09090 - Furniture Refinisher Helper	21.85
09110 - Furniture Repairer, Minor	25.97
09130 - Upholsterer	29.40
11000 - General Services And Support Occupations	
11030 - Cleaner, Vehicles	17.04
11060 - Elevator Operator	17.94
11090 - Gardener	26.04
11122 - Housekeeping Aide	17.94
11150 - Janitor	17.94
11210 - Laborer, Grounds Maintenance	19.12
11240 - Maid or Houseman	15.72
11260 - Pruner	16.97
11270 - Tractor Operator	23.76
11330 - Trail Maintenance Worker	19.12
11360 - Window Cleaner	20.21
12000 - Health Occupations	
12010 - Ambulance Driver	20.20
12011 - Breath Alcohol Technician	26.02
12012 - Certified Occupational Therapist Assistant	35.70
12015 - Certified Physical Therapist Assistant	31.68
12020 - Dental Assistant	25.84
12025 - Dental Hygienist	39.59
12030 - EKG Technician	39.42
12035 - Electroneurodiagnostic Technologist	39.42
12040 - Emergency Medical Technician	20.20
12071 - Licensed Practical Nurse I	23.26
12072 - Licensed Practical Nurse II	26.02
12073 - Licensed Practical Nurse III	29.00
12100 - Medical Assistant	22.90
12130 - Medical Laboratory Technician	30.21
12160 - Medical Record Clerk	20.83
12190 - Medical Record Technician	23.30
12195 - Medical Transcriptionist	23.26
12210 - Nuclear Medicine Technologist	57.18
12221 - Nursing Assistant I	13.97
12222 - Nursing Assistant II	15.72
12223 - Nursing Assistant III	17.15
12224 - Nursing Assistant IV	19.25
12235 - Optical Dispenser	20.48
12236 - Optical Technician	23.26

12250 - Pharmacy Technician	23.28
12280 - Phlebotomist	21.07
12305 - Radiologic Technologist	34.80
12311 - Registered Nurse I	26.13
12312 - Registered Nurse II	31.95
12313 - Registered Nurse II, Specialist	31.95
12314 - Registered Nurse III	38.66
12315 - Registered Nurse III, Anesthetist	38.66
12316 - Registered Nurse IV	46.34
12317 - Scheduler (Drug and Alcohol Testing)	32.23
12320 - Substance Abuse Treatment Counselor	30.45
13000 - Information And Arts Occupations	
13011 - Exhibits Specialist I	21.62
13012 - Exhibits Specialist II	26.78
13013 - Exhibits Specialist III	32.76
13041 - Illustrator I	21.62
13042 - Illustrator II	26.78
13043 - Illustrator III	32.76
13047 - Librarian	29.66
13050 - Library Aide/Clerk	14.53
13054 - Library Information Technology Systems Administrator	26.78
13058 - Library Technician	20.35
13061 - Media Specialist I	19.32
13062 - Media Specialist II	21.62
13063 - Media Specialist III	24.11
13071 - Photographer I	19.32
13072 - Photographer II	21.62
13073 - Photographer III	26.78
13074 - Photographer IV	32.76
13075 - Photographer V	39.64
13090 - Technical Order Library Clerk	21.28
13110 - Video Teleconference Technician	19.32
14000 - Information Technology Occupations	
14041 - Computer Operator I	22.56
14042 - Computer Operator II	25.24
14043 - Computer Operator III	28.12
14044 - Computer Operator IV	31.26
14045 - Computer Operator V	34.62
14071 - Computer Programmer I	(see 1) 19.62
14072 - Computer Programmer II	(see 1) 24.31
14073 - Computer Programmer III	(see 1)
14074 - Computer Programmer IV	(see 1)
14101 - Computer Systems Analyst I	(see 1)
14102 - Computer Systems Analyst II	(see 1)
14103 - Computer Systems Analyst III	(see 1)
14150 - Peripheral Equipment Operator	22.56
14160 - Personal Computer Support Technician	31.26
14170 - System Support Specialist	34.62
15000 - Instructional Occupations	
15010 - Aircrew Training Devices Instructor (Non-Rated)	28.77
15020 - Aircrew Training Devices Instructor (Rated)	34.80
15030 - Air Crew Training Devices Instructor (Pilot)	41.71
15050 - Computer Based Training Specialist / Instructor	28.77
15060 - Educational Technologist	38.54
15070 - Flight Instructor (Pilot)	41.71
15080 - Graphic Artist	23.05
15085 - Maintenance Test Pilot, Fixed, Jet/Prop	41.71
15086 - Maintenance Test Pilot, Rotary Wing	41.71
15088 - Non-Maintenance Test/Co-Pilot	41.71
15090 - Technical Instructor	26.42
15095 - Technical Instructor/Course Developer	32.32
15110 - Test Proctor	21.33
15120 - Tutor	21.33
16000 - Laundry, Dry-Cleaning, Pressing And Related Occupations	

16010 - Assembler	11.54
16030 - Counter Attendant	11.54
16040 - Dry Cleaner	13.51
16070 - Finisher, Flatwork, Machine	11.54
16090 - Presser, Hand	11.54
16110 - Presser, Machine, Drycleaning	11.54
16130 - Presser, Machine, Shirts	11.54
16160 - Presser, Machine, Wearing Apparel, Laundry	11.54
16190 - Sewing Machine Operator	14.12
16220 - Tailor	14.74
16250 - Washer, Machine	12.17
19000 - Machine Tool Operation And Repair Occupations	
19010 - Machine-Tool Operator (Tool Room)	33.60
19040 - Tool And Die Maker	40.03
21000 - Materials Handling And Packing Occupations	
21020 - Forklift Operator	24.12
21030 - Material Coordinator	32.79
21040 - Material Expediter	32.79
21050 - Material Handling Laborer	21.17
21071 - Order Filler	19.50
21080 - Production Line Worker (Food Processing)	24.12
21110 - Shipping Packer	21.30
21130 - Shipping/Receiving Clerk	21.30
21140 - Store Worker I	14.14
21150 - Stock Clerk	19.59
21210 - Tools And Parts Attendant	24.12
21410 - Warehouse Specialist	24.12
23000 - Mechanics And Maintenance And Repair Occupations	
23010 - Aerospace Structural Welder	37.49
23019 - Aircraft Logs and Records Technician	29.29
23021 - Aircraft Mechanic I	35.90
23022 - Aircraft Mechanic II	37.49
23023 - Aircraft Mechanic III	38.91
23040 - Aircraft Mechanic Helper	24.64
23050 - Aircraft, Painter	33.90
23060 - Aircraft Servicer	29.29
23070 - Aircraft Survival Flight Equipment Technician	33.90
23080 - Aircraft Worker	31.57
23091 - Aircrew Life Support Equipment (ALSE) Mechanic I	31.57
23092 - Aircrew Life Support Equipment (ALSE) Mechanic II	35.90
23110 - Appliance Mechanic	33.06
23120 - Bicycle Repairer	26.76
23125 - Cable Splicer	49.95
23130 - Carpenter, Maintenance	28.79
23140 - Carpet Layer	31.28
23160 - Electrician, Maintenance	37.86
23181 - Electronics Technician Maintenance I	42.61
23182 - Electronics Technician Maintenance II	45.76
23183 - Electronics Technician Maintenance III	48.45
23260 - Fabric Worker	29.02
23290 - Fire Alarm System Mechanic	35.58
23310 - Fire Extinguisher Repairer	26.76
23311 - Fuel Distribution System Mechanic	46.12
23312 - Fuel Distribution System Operator	34.71
23370 - General Maintenance Worker	24.49
23380 - Ground Support Equipment Mechanic	35.90
23381 - Ground Support Equipment Servicer	29.29
23382 - Ground Support Equipment Worker	31.57
23391 - Gunsmith I	26.76
23392 - Gunsmith II	31.28
23393 - Gunsmith III	35.58
23410 - Heating, Ventilation And Air-Conditioning Mechanic	35.00

23411 - Heating, Ventilation And Air Contidioning Mechanic (Research Facility)	36.55
23430 - Heavy Equipment Mechanic	35.30
23440 - Heavy Equipment Operator	31.09
23460 - Instrument Mechanic	35.58
23465 - Laboratory/Shelter Mechanic	33.60
23470 - Laborer	21.17
23510 - Locksmith	33.60
23530 - Machinery Maintenance Mechanic	35.00
23550 - Machinist, Maintenance	31.60
23580 - Maintenance Trades Helper	24.42
23591 - Metrology Technician I	35.58
23592 - Metrology Technician II	37.15
23593 - Metrology Technician III	38.56
23640 - Millwright	35.58
23710 - Office Appliance Repairer	30.33
23760 - Painter, Maintenance	25.76
23790 - Pipefitter, Maintenance	32.76
23810 - Plumber, Maintenance	30.93
23820 - Pneudraulic Systems Mechanic	35.58
23850 - Rigger	32.86
23870 - Scale Mechanic	31.28
23890 - Sheet-Metal Worker, Maintenance	37.31
23910 - Small Engine Mechanic	31.28
23931 - Telecommunications Mechanic I	42.18
23932 - Telecommunications Mechanic II	44.05
23950 - Telephone Lineman	40.98
23960 - Welder, Combination, Maintenance	29.54
23965 - Well Driller	34.75
23970 - Woodcraft Worker	35.58
23980 - Woodworker	26.76
24000 - Personal Needs Occupations	
24550 - Case Manager	22.54
24570 - Child Care Attendant	15.03
24580 - Child Care Center Clerk	18.74
24610 - Chore Aide	17.96
24620 - Family Readiness And Support Services Coordinator	22.54
24630 - Homemaker	22.54
25000 - Plant And System Operations Occupations	
25010 - Boiler Tender	42.46
25040 - Sewage Plant Operator	26.80
25070 - Stationary Engineer	42.46
25190 - Ventilation Equipment Tender	29.40
25210 - Water Treatment Plant Operator	26.80
27000 - Protective Service Occupations	
27004 - Alarm Monitor	27.00
27007 - Baggage Inspector	18.58
27008 - Corrections Officer	25.30
27010 - Court Security Officer	25.30
27030 - Detection Dog Handler	20.78
27040 - Detention Officer	25.30
27070 - Firefighter	25.41
27101 - Guard I	18.58
27102 - Guard II	20.78
27131 - Police Officer I	30.20
27132 - Police Officer II	33.56
28000 - Recreation Occupations	
28041 - Carnival Equipment Operator	19.01
28042 - Carnival Equipment Repairer	20.83
28043 - Carnival Worker	13.58
28210 - Gate Attendant/Gate Tender	23.82
28310 - Lifeguard	17.17
28350 - Park Attendant (Aide)	26.64
28510 - Recreation Aide/Health Facility Attendant	19.45

28515 - Recreation Specialist	33.01
28630 - Sports Official	21.22
28690 - Swimming Pool Operator	24.36
29000 - Stevedoring/Longshoremen Occupational Services	
29010 - Blocker And Bracer	35.39
29020 - Hatch Tender	35.39
29030 - Line Handler	35.39
29041 - Stevedore I	32.83
29042 - Stevedore II	38.00
30000 - Technical Occupations	
30010 - Air Traffic Control Specialist, Center (HFO)	46.07
30011 - Air Traffic Control Specialist, Station (HFO)	31.77
30012 - Air Traffic Control Specialist, Terminal (HFO)	34.99
30021 - Archeological Technician I	21.02
30022 - Archeological Technician II	23.51
30023 - Archeological Technician III	29.12
30030 - Cartographic Technician	29.12
30040 - Civil Engineering Technician	29.50
30051 - Cryogenic Technician I	32.25
30052 - Cryogenic Technician II	35.62
30061 - Drafter/CAD Operator I	21.02
30062 - Drafter/CAD Operator II	23.51
30063 - Drafter/CAD Operator III	26.20
30064 - Drafter/CAD Operator IV	32.25
30081 - Engineering Technician I	18.32
30082 - Engineering Technician II	20.57
30083 - Engineering Technician III	23.17
30084 - Engineering Technician IV	28.71
30085 - Engineering Technician V	35.11
30086 - Engineering Technician VI	42.48
30090 - Environmental Technician	29.12
30095 - Evidence Control Specialist	29.12
30210 - Laboratory Technician	24.26
30221 - Latent Fingerprint Technician I	32.25
30222 - Latent Fingerprint Technician II	35.62
30240 - Mathematical Technician	29.12
30361 - Paralegal/Legal Assistant I	22.61
30362 - Paralegal/Legal Assistant II	28.00
30363 - Paralegal/Legal Assistant III	34.24
30364 - Paralegal/Legal Assistant IV	41.43
30375 - Petroleum Supply Specialist	35.62
30390 - Photo-Optics Technician	29.12
30395 - Radiation Control Technician	35.62
30461 - Technical Writer I	29.12
30462 - Technical Writer II	35.62
30463 - Technical Writer III	43.11
30491 - Unexploded Ordnance (UXO) Technician I	29.28
30492 - Unexploded Ordnance (UXO) Technician II	35.43
30493 - Unexploded Ordnance (UXO) Technician III	42.46
30494 - Unexploded (UXO) Safety Escort	29.28
30495 - Unexploded (UXO) Sweep Personnel	29.28
30501 - Weather Forecaster I	32.25
30502 - Weather Forecaster II	39.24
30620 - Weather Observer, Combined Upper Air Or Surface Programs	(see 2) 26.20
30621 - Weather Observer, Senior	(see 2) 29.12
31000 - Transportation/Mobile Equipment Operation Occupations	
31010 - Airplane Pilot	35.43
31020 - Bus Aide	15.38
31030 - Bus Driver	22.73
31043 - Driver Courier	21.07
31260 - Parking and Lot Attendant	15.05
31290 - Shuttle Bus Driver	22.15
31310 - Taxi Driver	13.70
31361 - Truckdriver, Light	23.09

31362 - Truckdriver, Medium	25.04
31363 - Truckdriver, Heavy	29.79
31364 - Truckdriver, Tractor-Trailer	29.79
99000 - Miscellaneous Occupations	
99020 - Cabin Safety Specialist	17.27
99030 - Cashier	14.52
99050 - Desk Clerk	15.69
99095 - Embalmer	30.27
99130 - Flight Follower	29.28
99251 - Laboratory Animal Caretaker I	17.41
99252 - Laboratory Animal Caretaker II	19.09
99260 - Marketing Analyst	28.20
99310 - Mortician	30.27
99410 - Pest Controller	25.79
99510 - Photofinishing Worker	15.39
99710 - Recycling Laborer	26.58
99711 - Recycling Specialist	33.04
99730 - Refuse Collector	23.60
99810 - Sales Clerk	17.04
99820 - School Crossing Guard	15.50
99830 - Survey Party Chief	28.76
99831 - Surveying Aide	19.31
99832 - Surveying Technician	25.25
99840 - Vending Machine Attendant	20.83
99841 - Vending Machine Repairer	26.69
99842 - Vending Machine Repairer Helper	20.83

Note: Executive Order (EO) 13706, Establishing Paid Sick Leave for Federal Contractors, applies to all contracts subject to the Service Contract Act for which the contract is awarded (and any solicitation was issued) on or after January 1, 2017. If this contract is covered by the EO, the contractor must provide employees with 1 hour of paid sick leave for every 30 hours they work, up to 56 hours of paid sick leave each year. Employees must be permitted to use paid sick leave for their own illness, injury or other health-related needs, including preventive care; to assist a family member (or person who is like family to the employee) who is ill, injured, or has other health-related needs, including preventive care; or for reasons resulting from, or to assist a family member (or person who is like family to the employee) who is the victim of, domestic violence, sexual assault, or stalking. Additional information on contractor requirements and worker protections under the EO is available at www.dol.gov/whd/govcontracts.

Note: Executive Order 13658 generally applies to contracts subject to the Service Contract Act that were awarded on or between January 1, 2015 and January 29, 2022, and that have not been renewed or extended on or after January 30, 2022. If a contract is subject to Executive Order 13658, the contractor must pay all covered workers at least \$13.30 per hour (or the applicable wage rate listed on this wage determination, if it is higher) for all hours spent performing on the contract in 2025. The applicable Executive Order minimum wage rate will be adjusted annually. Additional information on contractor requirements and worker protections under Executive Order 13658 is available at www.dol.gov/whd/govcontracts.

ALL OCCUPATIONS LISTED ABOVE RECEIVE THE FOLLOWING BENEFITS:

HEALTH & WELFARE: \$5.55 per hour, up to 40 hours per week, or \$222.00 per week or \$962.00 per month

HEALTH & WELFARE EO 13706: \$5.09 per hour, up to 40 hours per week, or \$203.60 per week, or \$882.27 per month*

*This rate is to be used only when compensating employees for performance on an SCA-

covered contract also covered by EO 13706, Establishing Paid Sick Leave for Federal Contractors. A contractor may not receive credit toward its SCA obligations for any paid sick leave provided pursuant to EO 13706.

VACATION: 2 weeks paid vacation after 1 year of service with a contractor or successor, 3 weeks after 10 years, and 4 weeks after 15 years. Length of service includes the whole span of continuous service with the present contractor or successor, wherever employed, and with the predecessor contractors in the performance of similar work at the same Federal facility. (See 29 CFR 4.173)

HOLIDAYS: A minimum of eleven paid holidays per year: New Year's Day, Martin Luther King Jr.'s Birthday, Washington's Birthday, Memorial Day, Juneteenth National Independence Day, Independence Day, Labor Day, Columbus Day, Veterans' Day, Thanksgiving Day, and Christmas Day. (A contractor may substitute for any of the named holidays another day off with pay in accordance with a plan communicated to the employees involved.) (See 29 CFR 4.174)

THE OCCUPATIONS WHICH HAVE NUMBERED FOOTNOTES IN PARENTHESES RECEIVE THE FOLLOWING:

- 1) Does not apply to employees employed in a bona fide executive, administrative, or professional capacity as defined and delineated in 29 CFR 541. (See CFR 4.156)
- 2) WEATHER OBSERVERS - NIGHT PAY & SUNDAY PAY: If you work at night as part of a regular tour of duty, you will earn a night differential and receive an additional 10% of basic pay for any hours worked between 6pm and 6am. If you are a full-time employed (40 hours a week) and Sunday is part of your regularly scheduled workweek, you are paid at your rate of basic pay plus a Sunday premium of 25% of your basic rate for each hour of Sunday work which is not overtime (i.e. occasional work on Sunday outside the normal tour of duty is considered overtime work).

**** HAZARDOUS PAY DIFFERENTIAL ****

An 8 percent differential is applicable to employees employed in a position that represents a high degree of hazard when working with or in close proximity to ordnance, explosives, and incendiary materials. This includes work such as screening, blending, dying, mixing, and pressing of sensitive ordnance, explosives, and pyrotechnic compositions such as lead azide, black powder and photoflash powder. All dry-house activities involving propellants or explosives. Demilitarization, modification, renovation, demolition, and maintenance operations on sensitive ordnance, explosives and incendiary materials. All operations involving re-grading and cleaning of artillery ranges.

A 4 percent differential is applicable to employees employed in a position that represents a low degree of hazard when working with, or in close proximity to ordnance, (or employees possibly adjacent to) explosives and incendiary materials which involves potential injury such as laceration of hands, face, or arms of the employee engaged in the operation, irritation of the skin, minor burns and the like; minimal damage to immediate or adjacent work area or equipment being used. All operations involving, unloading, storage, and hauling of ordnance, explosive, and incendiary ordnance material other than small arms ammunition. These differentials are only applicable to work that has been specifically designated by the agency for ordnance, explosives, and incendiary material differential pay.

**** UNIFORM ALLOWANCE ****

If employees are required to wear uniforms in the performance of this contract (either by the terms of the Government contract, by the employer, by the state or local law, etc.), the cost of furnishing such uniforms and maintaining (by laundering or dry cleaning) such uniforms is an expense that may not be borne by an employee where such cost reduces the hourly rate below that required by the wage determination. The Department of Labor will accept payment in accordance with the following standards as compliance:

The contractor or subcontractor is required to furnish all employees with an adequate number of uniforms without cost or to reimburse employees for the actual cost of the uniforms. In addition, where uniform cleaning and maintenance is made the responsibility of the employee, all contractors and subcontractors subject to this wage determination shall (in the absence of a bona fide collective bargaining agreement providing for a different amount, or the furnishing of contrary affirmative proof as to the actual cost), reimburse all employees for such cleaning and maintenance at a rate of \$3.35 per week (or \$.67 cents per day). However, in those instances where the uniforms furnished are made of "wash and wear" materials, may be routinely washed and dried with other personal garments, and do not require any special treatment such as dry cleaning, daily washing, or commercial laundering in order to meet the cleanliness or appearance standards set by the terms of the Government contract, by the contractor, by law, or by the nature of the work, there is no requirement that employees be reimbursed for uniform maintenance costs.

**** SERVICE CONTRACT ACT DIRECTORY OF OCCUPATIONS ****

The duties of employees under job titles listed are those described in the "Service Contract Act Directory of Occupations", Fifth Edition (Revision 1), dated September 2015, unless otherwise indicated.

**** REQUEST FOR AUTHORIZATION OF ADDITIONAL CLASSIFICATION AND WAGE RATE, Standard Form 1444 (SF-1444) ****

Conformance Process:

The contracting officer shall require that any class of service employee which is not listed herein and which is to be employed under the contract (i.e., the work to be performed is not performed by any classification listed in the wage determination), be classified by the contractor so as to provide a reasonable relationship (i.e., appropriate level of skill comparison) between such unlisted classifications and the classifications listed in the wage determination (See 29 CFR 4.6(b)(2)(i)). Such conforming procedures shall be initiated by the contractor prior to the performance of contract work by such unlisted class(es) of employees (See 29 CFR 4.6(b)(2)(ii)). The Wage and Hour Division shall make a final determination of conformed classification, wage rate, and/or fringe benefits which shall be paid to all employees performing in the classification from the first day of work on which contract work is performed by them in the classification. Failure to pay such unlisted employees the compensation agreed upon by the interested parties and/or fully determined by the Wage and Hour Division retroactive to the date such class of employees commenced contract work shall be a violation of the Act and this contract. (See 29 CFR 4.6(b)(2)(v)). When multiple wage determinations are included in a contract, a separate SF-1444 should be prepared for each wage determination to which a class(es) is to be conformed.

The process for preparing a conformance request is as follows:

- 1) When preparing the bid, the contractor identifies the need for a conformed occupation(s) and computes a proposed rate(s).
- 2) After contract award, the contractor prepares a written report listing in order the proposed classification title(s), a Federal grade equivalency (FGE) for each proposed classification(s), job description(s), and rationale for proposed wage rate(s), including information regarding the agreement or disagreement of the authorized representative of the employees involved, or where there is no authorized representative, the employees themselves. This report should be submitted to the contracting officer no later than 30 days after such unlisted class(es) of employees performs any contract work.
- 3) The contracting officer reviews the proposed action and promptly submits a report of the action, together with the agency's recommendations and pertinent information including the position of the contractor and the employees, to the U.S. Department of Labor, Wage and Hour Division, for review (See 29 CFR 4.6(b)(2)(ii)).

4) Within 30 days of receipt, the Wage and Hour Division approves, modifies, or disapproves the action via transmittal to the agency contracting officer, or notifies the contracting officer that additional time will be required to process the request.

5) The contracting officer transmits the Wage and Hour Division's decision to the contractor.

6) Each affected employee shall be furnished by the contractor with a written copy of such determination or it shall be posted as a part of the wage determination (See 29 CFR 4.6(b)(2)(iii)).

Information required by the Regulations must be submitted on SF-1444 or bond paper.

When preparing a conformance request, the "Service Contract Act Directory of Occupations" should be used to compare job definitions to ensure that duties requested are not performed by a classification already listed in the wage determination. Remember, it is not the job title, but the required tasks that determine whether a class is included in an established wage determination. Conformances may not be used to artificially split, combine, or subdivide classifications listed in the wage determination (See 29 CFR 4.152(c)(1))."